

19. Unincorporated societies.
20. Control of agricultural pests; protection against such pests; prevention of plant diseases.
21. Newspapers; publications; publishers; printing and printing presses.
22. Censorship.
23. Subject to item 5(f) of the State List: theatres; cinemas; cinematograph films; places of public amusement.
24. (*Repealed*).
25. Co-operative societies.
- 25A. Tourism.
26. Subject to item 9A of the Concurrent List, prevention and extinguishment of fire, including fire services and fire brigades.
27. All matters relating to the Federal Territories, including the matters enumerated in items 2, 3, 4 and 5 of the State List and in the case of Federal Territory of Labuan, the matters enumerated in items 15, 16 and 17 of the Supplement to State List for States of Sabah and Sarawak.

List II—State List

1. Except with respect to the Federal Territories of Kuala Lumpur, Labuan and Putrajaya, Islamic law and personal and family law of persons professing the religion of Islam, including the Islamic law relating to succession, testate and intestate, betrothal, marriage, divorce, dower, maintenance, adoption, legitimacy, guardianship, gifts, partitions and non-charitable trusts; Wakafs and the definition and regulation of charitable and religious trusts, the appointment of trustees and the incorporation of persons in respect of Islamic religious and charitable endowments, institutions, trusts, charities and charitable institutions operating wholly within the State; Malay customs; Zakat, Fitrah and Baitulmal or similar Islamic religious revenue; mosques or any Islamic public place of worship, creation and punishment of offences by persons professing the religion of Islam against precepts of that religion, except in regard to matters included in the Federal List; the constitution, organization and procedure of Syariah courts, which shall have jurisdiction only over persons professing the religion of Islam and in respect only of any of the matters included in this paragraph, but shall not have jurisdiction in respect of offences except in so far as conferred by federal law; the control of propagating doctrines and beliefs among persons professing the religion of Islam; the determination of matters of Islamic law and doctrine and Malay custom.
2. Except with respect to the Federal Territories of Kuala Lumpur, Labuan and Putrajaya, land including—
 - (a) land tenure, relation of landlord and tenant; registration of titles and

Federal Constitution

NOTES

Ninth Schedule—(cont.)

List II

See Art. 74(2), 76(1), 79(1), 80(2), 95B(1)(b) & (3).

Item 1

1. The words “adoption,” in line four was inserted by Act 31/1965, subsection 2(2), in force from 01-07-1965.
2. The words “Except with respect to the Federal Territory,” were inserted at the beginning by Act A206, section 11, in force from 01-02-1974.
3. The word “Islamic” substituted for the word “Muslim”, the words “Islamic law” substituted for the words “Muslim law”, the words “religion of Islam” substituted for the words “Muslim religion”, the word “Wakafs” substituted for the words “Muslim Wakafs”, the words “Islamic religious revenue” substituted for the words “Muslim revenue”, and the words “Syariah courts” substituted for the words “Muslim courts” by Act A354, sections 44 and 45, in force from 27-08-1976.

Item 2

The words “Except with respect to the Federal Territory,” were inserted at the beginning before the words “Land, including” by Act A206, section 11, in force from 01-02-1974.

deeds relating to land; colonization, land improvement and soil conservation; rent restriction;

- (b) Malay reservations or, in the States of Sabah and Sarawak, native reservations;
- (c) permits and licences for prospecting for mines; mining leases and certificates;
- (d) compulsory acquisition of land;
- (e) transfer of land, mortgages, leases and charges in respect of land; easements; and
- (f) escheat; treasure trove excluding antiquities.

3. Except with respect to the Federal Territories of Kuala Lumpur, Labuan and Putrajaya, agriculture and forestry, including—

- (a) agriculture and agricultural loans; and
- (b) forests.

4. Local government outside the Federal Territories of Kuala Lumpur, Labuan and Putrajaya, including—

- (a) local administration; municipal corporations; local, town and rural board and other local authorities; local government services, local rates, local government elections;
- (b) obnoxious trades and public nuisances in local authority areas; and
- (c) (*Repealed*).

5. Except with respect to the Federal Territories of Kuala Lumpur, Labuan and Putrajaya, other services of a local character, that is to say:

- (a) (*Repealed*);
- (b) boarding houses and lodging houses;
- (c) burial and cremation grounds;
- (d) pounds and cattle trespass;
- (e) markets and fairs; and
- (f) licensing of theatres, cinemas and places of public amusement.

6. State works and water, that is to say:

- (a) public works for State purposes;
- (b) roads, bridges and ferries other than those in the Federal List, regulation of weight and speed of vehicles on such roads; and
- (c) subject to the Federal List, water (including rivers and canals but excluding water supplies and services); control of silt; riparian rights.

Federal Constitution

NOTES

Ninth Schedule—(cont.)

Item 2(b)

1. The words “or, in the Borneo States, native reservations” were added by Act 26/1963, section 70, in force from 16-09-1963.
2. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Item 3

The words “Except with respect to the Federal Territory,” were inserted at the beginning before the words “Agriculture and forestry” by Act A206, section 11, in force from 01-02-1974.

Item 4

The words “Federal Territory” substituted for the words “federal capital” by Act A206, section 11, in force from 01-02-1974.

Items 1, 2, 3, 4 & 5

1. The words “Territories of Kuala Lumpur and Labuan” substituted for the word “Territory” by Act A585, section 20, in force from 16-04-1984.
2. Subsequently, the words “Kuala Lumpur, Labuan and Putrajaya” substituted for the words “Kuala Lumpur and Labuan” by Act A1095, paragraph 20(b), in force from 01-02-2001.

Item 4(c)

This Item which read as follows was deleted by Act A704, paragraph 12(b), in force from 10-06-1988:

“(c) Housing and provision for housing accommodation, improvement trusts.”.

Item 5

The words “Except with respect to the Federal Territory,” were inserted at the beginning before the words “Other services” by Act A206, section 11, in force from 01-02-1974.

Item 5(a)

1. This Item which read as follows was deleted by Act A354, paragraph 48(1)(b), in force from 01-01-1976:
“(a) Fire brigades, except in the federal capital;”.
2. This paragraph was amended by deleting “, except in the federal capital” by Act A206, section 11, in force from 01-02-1974.

Item 5(f): See List 1, Item 23.

Item 6(c)

1. The words “Subject to the Federal List, water (including water supplies, rivers and canals)” at the commencement substituted for the words “Water, subject to the Federal List, water supplies and canals” by Act 26/1963, section 70, in force from 16-09-1963.
2. This item was substituted by Act A1239, paragraph 4(a), in force from 21-03-2005. The earlier item read as follows:
“(c) Subject to the Federal List, water (including water supplies, rivers and canals); control of silt, riparian rights.”.

7. Machinery of the State Government, subject to the Federal List, but including—

- (a) Civil List and State pensions;
- (b) exclusive State services;
- (c) borrowing on the security of the State Consolidated Fund;
- (d) loans for State purposes;
- (e) public debt of the State; and
- (f) fees in respect of any of the matters included in the State List or dealt with by State law.

8. State holidays.

9. Creation of offences in respect of any of the matters included in the State List or dealt with by State law, proofs of State law and of things done thereunder, and proof of any matter for purposes of State law.

10. Inquiries for State purposes, including commissions of inquiry and collection of statistics with respect to any of the matters included in the State List or dealt with by State law.

11. Indemnity in respect of any of the matters in the State List or dealt with by State law.

12. Turtles and riverine fishing.

12A. Libraries, museums, ancient and historical monuments and records and archaeological sites and remains, other than those declared to be federal by or under federal law.

*List IIA—Supplement to State List for States of
Sabah and Sarawak*

[Article 95B(1)(a)]

13. Native law and custom, including the personal law relating to marriage, divorce, guardianship, maintenance, adoption, legitimacy, family law, gifts or succession, testate or intestate; registration of adoptions under native law or custom; the determination of matters of native law or custom; the constitution, organization, and procedure of native courts (including the right of audience in such courts), and the jurisdiction and powers of such courts, which shall extend only to the matters included in this paragraph and shall not include jurisdiction in respect of offences except in so far as conferred by federal law.

14. Incorporation of authorities and other bodies set up by State law, if incorporated directly by State law, and regulation and winding up of corporations so created.

Federal Constitution

NOTES

Ninth Schedule—(cont.)

Item 7(f)

The words “or dealt with by State law” were inserted by Act 25/1963, paragraph 6(1)(b), in force from 29-08-1963.

Items 9, 10 & 11

The words “or dealt with by State law” were inserted by Act 25/1963, paragraph 6(1)(b), in force from 29-08-1963, and paragraph 6(1)(c) inserted the words “proof of State law and of things done thereunder, and proof of any matter for purposes of State law” at the end of item 9.

Item 12A: Inserted by Act A704, paragraph 12(c), in force from 10-06-1988.

List IIa

Inserted by Act 26/1963, section 36, in force from 16-09-1963.

Item 13

The words “legitimacy,” in line 2 was inserted by Act 31/1965, subsection 2(2), in force from 01-07-1965.

Heading

The words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

15. Ports and harbours, other than those declared to be federal by or under federal law; regulation of traffic by water in ports and harbours or on rivers wholly within the State, except traffic in federal ports or harbours; foreshores.

16. Cadastral land surveys.

17. *(Repealed)*.

18. In Sabah, the Sabah Railway.

19. *(Repealed)*.

20. Subject to the Federal List, water supplies and services.

List II B—(Repealed)

List III—Concurrent List

1. Social welfare; social services subject to Lists I and II; protection of women, children and young persons.

2. Scholarships.

3. Protection of wild animals and wild birds; National Parks.

4. Animal husbandry; prevention of cruelty to animals; veterinary services; animal quarantine.

5. Town and country planning, except in the federal capital.

6. Vagrancy and itinerant hawkers.

7. Public health, sanitation (excluding sanitation in the federal capital) and the prevention of diseases.

8. Drainage and irrigation.

9. Rehabilitation of mining land and land which has suffered soil erosion.

9A. Fire safety measures and fire precautions in the construction and maintenance of buildings.

9B. Culture and sports.

9C. Housing and provisions for housing accommodation; improvement trusts.

9D. Subject to the Federal List, water supplies and services.

9E. Preservation of heritage.

*List IIIA—Supplement to Concurrent List for States of
Sabah and Sarawak*

[Article 95B(1)(b)]

10. Personal law relating to marriage, divorce, guardianship, maintenance, adoption, legitimacy, family law, gifts or succession, testate or intestate.

Federal Constitution

NOTES

Ninth Schedule—(cont.)

Item 17

This Item was repealed by Act A704, paragraph 12(d), in force from 10-06-1988 and read as follows:

“17. Libraries, museums, ancient and historical monuments and records and archaeological sites and remains, other than those declared to be federal by or under federal law.”.

Item 19

This Item which read as follows was inserted by Act A354, paragraph 48(1)(c), in force from 01-01-1976 and deleted by Act A514, paragraph 17(b), in force from 15-05-1981:

“19. Prevention and extinguishment of fire, including fire services and fire brigades.”.

Item 20: Inserted by Act A1239, paragraph 4(b), in force from 21-03-2005.

List IIb

This list was inserted by Act 26/1963, section 36, in force from 16-09-1963, and repealed by Act 59/1966, section 2, in force from 09-08-1965 and read as follows:

“List IIb—Supplement to State List for Singapore

13. Education, including the matters specified in items 13(a) and (b) of the Federal List.
14. Medicine and health, including the matters specified in items 14(a) to (d) of the Federal List.
15. Labour and social security, including the matters specified in items 15(a) and (b), but not those specified in item 15(c) of the Federal List.
16. Pensions, gratuities and other like allowances, and compensation for loss of office, in respect of service under the State (including any government service in the State before Malaysia Day).
17. Factories; boilers and machinery; dangerous trades; dangerous and inflammable substances.
18. Electricity; gas and gas works.
19. Itinerant hawkers.”.

List III

See Art. 74(1), 74(2), 76A(3), 79(1), 80(2), 82, 95B(1) & 95B(2).

Item 9A

1. Inserted by Act A354, paragraph 48(1)(d), in force from 01-01-1976.
2. The word “Fire” substituted for “Except with respect to Sabah and Sarawak, fire” by Act A514, paragraph 17(c), in force from 15-05-1981.

Items 9B & 9C: Inserted by Act A704, paragraph 12(e), in force from 10-06-1988.

Items 9D & 9E: Inserted by Act A1239, paragraph 4(c), in force from 21-03-2005.

List IIIA

Added by Act 26/1963, section 36, in force from 16-09-1963.

Heading

The words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Item 10

The word “legitimacy” in line two was inserted by Act 31/1965, subsection 2(2), in force from 01-07-1965.

11. Adulteration of foodstuffs and other goods.
12. Shipping under fifteen registered tons, including the carriage of passengers and goods by such shipping; maritime and estuarine fishing and fisheries.
13. The production, distribution and supply of water power and of electricity generated by water power.
14. Agricultural and forestry research, control of agricultural pests, and protection against such pests; prevention of plant diseases.
15. Charities and charitable trusts and institutions in the State (that is to say, operating wholly within, or created and operating in, the State) and their trustees, including the incorporation thereof and the regulation and winding up of incorporated charities and charitable institutions in the State.
16. Theatres; cinemas; cinematograph films; places of public amusement.
17. Elections to the State Assembly held during the period of indirect elections.
18. In Sabah until the end of the year 1970 (but not in Sarawak), medicine and health, including the matters specified in items 14(a) to (d) of the Federal List.

List IIIB—(Repealed)

TENTH SCHEDULE

[Articles 109, 112C, 161C(3)*]

Grants and Sources of Revenue Assigned to States

PART I

CAPITATION GRANT

1. (1) The capitation grant payable to each State in respect of a financial year shall be at the following rates:

- (a) for the first 100,000 persons at the rate of RM72.00 per person;
- (b) for the next 500,000 persons at the rate of RM10.20 per person;
- (c) for the next 500,000 persons at the rate of RM10.80 per person;
- (d) for the remainder at the rate of RM11.40 per person,

and shall be based on the annual population projections of the State as determined by the Federal Government and calculated as of the last population census:

*NOTE—This Article has been repealed by section 46 of the Constitution (Amendment) Act 1976 [Act A354] w.e.f. 27 August 1976.

Federal Constitution

NOTES

Ninth Schedule—(cont.)

List IIIb

This list was inserted by Act 26/1963, section 36, in force from 16-09-1963 and repealed by Act 59/1966, section 2, in force from 09-08-1965. It read as follows.

“List IIIb—Supplement to Concurrent List for Singapore

10. Personal law relating to marriage, divorce, guardianship, maintenance, adoption, legitimacy, family law, gifts or succession testate or intestate.
11. Loans to, or borrowing by, the State or statutory authorities exercising powers vested in them by the State law in Singapore.
12. (a) Production, supply and distribution of goods, but not bounties on production; price control and food control; adulteration of foodstuffs and other goods;
(b) Imports into, and exports from, the Federation, but not bounties on export;
(c) Insurance, including compulsory insurance;
(d) Auctions and auctioneers;
(e) Industries; regulation of industrial undertakings;
(f) Banking; money-lending; pawnbrokers.
13. Shipping and navigation, including the matters specified in items 9(a), (b), (c), (e) and (f) of the Federal List.
14. Professional occupations other than those specifically enumerated in the Federal List.
15. Unincorporated societies.
16. Charities and charitable trusts and institutions in the State (that is to say, operating wholly within, or created and operating in, the State) and their trustees, including the incorporation thereof and the regulation and winding up of incorporated charities and charitable institutions in the State.
17. Newspapers; publications; publishers; printing and printing presses.
18. Censorship.
19. Theatres; cinemas; cinematograph films; places of public amusement.
20. Until the end of August 1968, and thereafter until Parliament with the concurrence of the State government otherwise provides, elections to the Legislative Assembly.”.

Tenth Schedule

PART I

See Art. 109(1)(a).

Subsection 1(1)

- (a) This subsection was substituted by Act A392, section 2, in force from 01-01-1976. The original subsection read as follows:

“1. (1) The capitation grant payable to each State in respect of a financial year shall be at the following rates:

- (a) for the first 50,000 persons at the rate of \$15 per person;
- (b) for the next 200,000 persons at the rate of \$10 per person;
- (c) for the remainder at the rate of \$4 per person,

and shall be based on the population of the State as determined at the last census taken before the beginning of the preceding financial year.”.

- (b) The words “and shall be based on the annual population projections of the State as determined by the Federal Government and calculated as of the last population census:

Provided that if the last census was taken one year before the beginning of the financial year, the grant for that particular year shall be based on the population as determined by that population census” were substituted for “and shall be based on the population of the State as determined at the last census taken before the beginning of the preceding financial year.” by Act A514, paragraph 18(a), in force from 15-05-1981.